

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/24/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
8	30-2026-01581933 Gonzalez Hernandez vs. Saucedo	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10). When a party files a demurrer, the Court looks at the facial sufficiency of the complaint and attachments only and cannot consider extrinsic evidence. The Court must assume that the statements contained within the Complaint are true in determining facial sufficiency. As such, the Court OVERRULES the Defendants' demurrer. Based on only the information contained within the complaint and its attachments, there is sufficient basis to state a cause of action for an unlawful detainer. The issues raised by the Defendants in the Demurrer regarding the payments of rent and the possible overstatement of rent in the Notice to Pay Rent or Quit are factual determinations that will be addressed at trial. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
9	30-2026-01582683	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 14).

	Lincoln Apartments JV LLC vs. Ordonez	The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
10	30-2026-01543587 KLR Partners, LLC vs. Peter Pan Novelty Company	The Court has read and considered Plaintiff's Declaration Re: Non-Compliance with Stipulation for Entry of Judgment and Request for Entry of Judgment Thereon, together with all supporting filings, as well as Defendant's Opposition (ROA 62) and the related filings submitted in opposition. At the July 8, 2026, hearing, Plaintiff requested that this matter be converted to a general civil action pursuant to Civil Code section 1952.3 in light of the Court's tentative ruling. Because the issue arose from a Stipulation for Entry of Judgment in an unlawful detainer action, the Court ordered supplemental briefing on whether conversion under Civil Code section 1952.3 was appropriate. The Court has reviewed and considered Plaintiff's Supplemental Brief Re Amendment of Complaint Pursuant to Civil Code section 1952.3 (ROA 92), Defendant Peter Pan Novelty Company's Supplemental Brief Re Effects of Civil Code section 1952.3 on the Parties' Stipulation and Opposition to Plaintiff's Request for Leave to Amend (ROA 95), and Plaintiff's Oral Argument Brief and Reply to Defendant's Supplemental Brief (ROA 97). The principal purpose of an unlawful detainer action is to determine the right to possession of real property. Code of Civil Procedure section 1179, subdivision (a), affords unlawful detainer proceedings statutory calendar preference because of that limited purpose. Once possession has been restored, however, the justification for expedited unlawful detainer proceedings no longer exists, and any remaining disputes are generally resolved through ordinary civil procedures. Separately, Civil Code section 1950.7 authorizes a commercial landlord, upon termination of the tenancy, to apply a tenant's security deposit toward unpaid rent, the cost of repairing damage beyond ordinary wear and tear, and other amounts authorized by statute. The parties do not dispute that Defendants surrendered possession of the premises or that Defendants timely paid the agreed amount of \$65,865.00 as required under the Stipulation for Entry of Judgment Upon Default (ROA 46). The only dispute is whether Defendants returned the premises in the condition required by the Stipulation—namely, "clean and undamaged condition, ordinary wear and tear expected." As Defendant correctly observes in its supplemental brief (ROA 95), Plaintiff's alleged repair costs were not included in its request for entry of judgment under the Stipulation. Instead, paragraph 11 of the Stipulation expressly reserved Plaintiff's right to pursue any claims for property damage separately. The Court concludes that the alleged failure to return the premises in the required condition does not constitute a material breach of the Stipulation